

SERVICE LEVEL AGREEMENT (SLA)

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This Service Level Agreement ("SLA") is entered into by Starlight Manufacturing ("Provider") and Apex Innovations LLC ("Client") on 18 May 2025, acting as an addendum to the existing Master Services Agreement between the parties.

1. **SERVICE COMMITMENT.** Provider commits to providing a Monthly Uptime Percentage of at least 99.9% for the hosted e-commerce platform (the "Service"). If Provider does not meet the Service Commitment, Client will be eligible to receive a Service Credit as described below.
2. **DEFINITIONS.** - "Monthly Uptime Percentage" is calculated by subtracting from 100% the percentage of minutes during the month in which the Service was unavailable. - "Downtime" is defined as any period where the Service is completely inaccessible to end-users, excluding scheduled maintenance.
3. **SERVICE CREDITS.** - If the Monthly Uptime Percentage is between 99.0% and 99.89%, Client will receive a Service Credit equal to 10% of the monthly billing cycle fee. - If the Monthly Uptime Percentage drops below 99.0%, Client will receive a Service Credit equal to 25% of the monthly billing cycle fee. Service Credits will be applied to future invoices and may not be exchanged for cash refunds.
4. **SCHEDULED MAINTENANCE.** Provider will perform routine maintenance on the Service between the hours of 2:00 AM and 5:00 AM Eastern Time on Sundays. Provider will notify Client at least 48 hours in advance of any maintenance expected to cause Downtime.
5. **EXCLUSIONS.** The Service Commitment does not apply to any Downtime resulting from: (i) Client's equipment, software, or network infrastructure; (ii) Force Majeure events; or (iii) actions or inactions of Client or third parties acting on Client's behalf.